

**MARSDEN AUDIO LABORATORIES, INC. —INTELLECTUAL PROPERTY
JOINT DEVELOPMENT AGREEMENT, SHINONOME ELECTRIC, NOVEMBER 16, 2009
COMPARISON OF THE JAPANESE GOVERNING TEXT WITH THE ENGLISH COURTESY
TRANSLATION**

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Source of the Japanese text: mail journal archive, attachment to E. Bricknell's message of November 19, 2009 (see IG-SR-2025-0007, §5.2)

Source of the English text: Veritan IPM, matter MAL-JP-2010-0392, document 1

The Japanese text is the governing text. Article 18: 「本契約は日本語をもって正文とする。英訳文は参考のために作成されたものであり、日本語正文と相違がある場合には日本語正文による。」 The English translation states the same thing in its own Article 18.

1. Article 5.1 —the ownership provision

Japanese (governing):

別紙 A に定める対象範囲において生じた発明は、両当事者の共有とし、持分は各二分の一とする。

Literal rendering (Minagawa):

"Inventions arising within the scope defined in Annex A shall be jointly owned by the parties, each holding a one-half share."

English courtesy translation as filed:

"All improvements arising therefrom shall be jointly owned by the Parties in equal shares."

What changed

Japanese	English as filed	Effect
別紙 A に定める対象範囲において生じた	<i>arising therefrom</i>	The defined field is deleted. In the English text “therefrom” has no antecedent in Article 5 at all. It reads back to “the Joint Development”, which English Article 1 defines as joint research and development “in the field of next-generation object-based audio coding”—the whole field, not the four work packages. English Article 4 does not define a scope either; it describes work packages. There is nothing left in the English text that limits Article 5.1 to anything. This is the entire dispute.
発明 (inventions)	<i>improvements</i>	Broader in an English IP text; “improvements” is normally read to include developments made to or around a subject technology, which is not what 発明 means here.
両当事者の共有とし、持分は各二分の一とする —	<i>jointly owned by the Parties in equal shares</i> <i>All</i>	Accurate. Added. There is no corresponding word in the Japanese, and the addition reinforces the loss of the field limitation.

Consequence. A reader of the English text, with no access to Annex A — which was not translated and is not in Veritan — reads Article 5.1 as a program-wide joint-ownership rule. That is how Shinonome Device Solutions read it in their letter of November 12, 2024, and it is how this department has read it since 2016.

2. Article 9 —background technical information

Japanese (governing):

甲乙は、本共同開発の円滑な遂行のため、定例会議において、自己が保有する関連する背景技術情報を相手方に共有するよう努めるものとする。

Literal rendering: “The parties shall endeavor to share with each other, at the review meetings, background technical information in their possession relating to the Joint Development, for the smooth conduct of the Joint Development.”

English as filed: “...each Party shall endeavor to **contribute** to the other, at the review meetings, background technical information...”

What changed. 共有する (share) becomes *contribute*. In English, to contribute something to a joint undertaking carries a suggestion of putting it in —of adding it to the common pool. 共有する does not. The final sentence of the Japanese, 「本条は、情報の共有に関する定めであって、成果の帰属に関する定めではない」, survives in the English and is correct, but the reader has already been pushed the other way by the verb.

3. Article 8 —cost sharing

Japanese (governing): 「…プログラムコード JD-SHN-09 に基づき、各当事者の作業工数の比率により分担する。費用分担のための管理区分は、権利の帰属を示すものではない。」

Literal rendering of the second sentence: “The classification used for cost sharing does not indicate the ownership of rights.”

English as filed: “...in proportion to each Party’s work effort under program code JD-SHN-09.”

Omitted. The second sentence is not softened and not mistranslated. It is absent. The one sentence in the agreement that says in terms that the program code is not an ownership statement never reached the English file copy, and so never reached Veritan, and so was not in front of anyone at headquarters at any point in the nine years during which a value derived from that program code was reported as ownership.

4. Annex A

Annex A was **not translated**. The English document in Veritan says only that the annexes are not included. It gives the reader no reason to go and find them, and no indication that Article 5.1 cannot be read without them.

Annex A is two pages. It lists four work packages, all encoder-side, and closes with a note that reads, in literal rendering: “This scope is limited to encoder-side processing. Processing in the decoder, rendering processing, and adaptation to the playback environment are not within this scope. Each Party’s existing or future development in those areas is unaffected by this Agreement.”

The invention of MAL-JP-2010-0392 is decoder-side processing adapted to the playback environment. Annex A excludes it in terms, by name, in the executed Japanese text, in 2009.

5. Summary

Document	Where it has been since 2016	What it says about this invention
Japanese governing text, Art. 5.1 + Annex A	Mail journal archive only	Outside the field. Sole property of Marsden.
Japanese governing text, Art. 8, second sentence	Mail journal archive only	The program code is not an ownership statement.
English courtesy translation, Art. 5.1	Veritan, matter MAL-JP-2010-0392, document 1	Reads as program-wide joint ownership.
Veritan Ownership Status	Veritan, controlled field	Joint — Shinonome Electric (50%), derived from the program code.

Two of those four are in the system of record and both of them are wrong. The two that are not in it are the two that govern, and each of them answers one of the two that are.